

Unofficial 20. Document

RECORDING REQUESTED BY:

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WHEN RECORDED MAIL TO:

MTC Financial Inc. dba Trustee Corps
17100 Gillette Ave
Irvine, CA 92614

TS No. AZ08000069-26-1

APN 165-10-003H4

TO No. 4118320

NOTICE OF TRUSTEE'S SALE

The following legally described trust property will be sold, pursuant to the power of sale under that certain Deed of Trust dated April 19, 2004 and recorded on April 28, 2004 as Instrument No. 2004-0461185 of official records in the Office of the Recorder of Maricopa County, Arizona. **NOTICE! IF YOU BELIEVE THERE IS A DEFENSE TO THE TRUSTEE SALE OR IF YOU HAVE AN OBJECTION TO THE TRUSTEE SALE, YOU MUST FILE AN ACTION AND OBTAIN A COURT ORDER PURSUANT TO RULE 65, ARIZONA RULES OF CIVIL PROCEDURE, STOPPING THE SALE NO LATER THAN 5:00 P.M. MOUNTAIN STANDARD TIME ON THE LAST BUSINESS DAY BEFORE THE SCHEDULED DATE OF THE SALE, OR YOU MAY HAVE WAIVED ANY DEFENSES OR OBJECTIONS TO THE SALE. UNLESS YOU OBTAIN AN ORDER, THE SALE WILL BE FINAL AND WILL OCCUR** at public auction to the highest bidder at the Main Entrance to the Superior Court Building, Maricopa County Courthouse, 201 W. Jefferson Street, Phoenix, AZ 85003 on October 15, 2026 at 10:00 AM on said day.

The street address and other common designation, if any, of the real property described above is purported to be: 1702 E EVA ST, PHOENIX , AZ 85020

SEE ATTACHED EXHIBIT "A"

APN: 165-10-003H4

Original Principal Balance \$500,000.00

Name and Address of original Trustor

DOUGLAS C. DER, A MARRIED MAN AS HIS SOLE AND SEPARATE PROPERTY
1702 E EVA ST, PHOENIX , AZ 85020

Name and Address of the Beneficiary

The Bank of New York Mellon FKA The Bank of New York as Trustee for the Certificateholders of the CWMBBS, Inc. CHL Mortgage Pass-Through Trust 2004-12, Mortgage Pass-Through Certificates, Series 2004-12

c/o Bank of America, N.A.
7105 Corporate Drive
Plano, TX 75024

Name and Address of Trustee

MTC Financial Inc. dba Trustee Corps
17100 Gillette Ave, Irvine, CA 92614
949-252-8300
TDD: 711 949.252.8300

Said sale will be made for cash (payable at time of sale), but without covenant or warranty, express or implied, regarding title, possession or encumbrances, to pay the remaining principal sum of the Note secured by said Trust Deed, which includes interest thereon as provided in said Note, advances, if any

under the terms of said Trust Deed, interest on advances, if any, fees, charges and expenses of the Trustee and of the trust created by said Trust Deed.

The Trustee will accept only cash or cashier's check for reinstatement or price bid payment. Reinstatement payment must be paid before five o'clock P.M. (5:00 P.M.) on the last day other than a Saturday or legal holiday before the date of sale. The purchaser at the sale, other than the Beneficiary to the extent of his credit bid, shall pay the price bid no later than five o'clock P.M. (5:00 P.M.) of the following day, other than a Saturday or legal holiday.

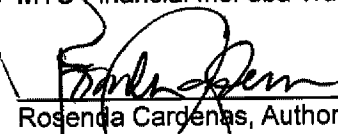
If the Trustee is unable to convey title for any reason, the successful bidder's sole and exclusive remedy shall be the return of monies paid to the Trustee and the successful bidder shall have no further recourse.

Conveyance of the property shall be without warranty, express or implied, and subject to all liens, claims or interest having a priority senior to the Deed of Trust. The Trustee shall not express an opinion as to the condition of title.

Effective **March 1, 2026**, new federal regulations (89 Fed. Reg. 70.258) may impact residential real property (1-4 residential units) title transfers to covered entities trusts, with reporting requirements unless exempt. <https://www.federalregister.gov/documents/2024/08/29/2024-19198/anti-money-laundering-regulations-for-residential-real-estate-transfers>

DATE: July 9, 2026

MTC Financial Inc. dba Trustee Corps


Rosenda Cardenas, Authorized Signatory

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Manner of Trustee qualification:

Real Estate Broker, as required by ARS Section 33-803, Subsection A

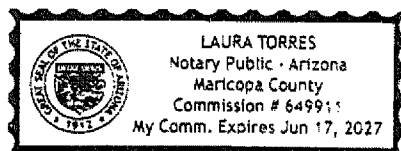
Name of Trustee's regulator:

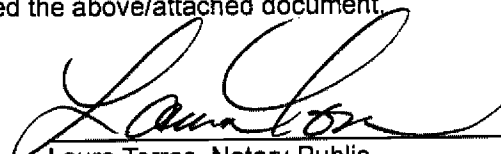
Arizona Department of Real Estate

**SALE INFORMATION CAN BE OBTAINED ONLINE AT www.Auction.com
FOR AUTOMATED SALES INFORMATION PLEASE CALL:
Auction.com at 800.280.2832**

State of ARIZONA
County of MARICOPA

On this 9th day of July, 2026, before me, LAURA TORRES, personally appeared ROSENDA CARDENAS, whose identity was proven to me on the basis of satisfactory evidence to be the person who he or she claims to be, and acknowledged that he or she signed the above/attached document.




Laura Torres, Notary Public
Commission# 649911
Commission Expires: June 17, 2027

To the extent your original obligation was discharged or is subject to an automatic stay of bankruptcy under Title 11 of the United States Code, this notice is for compliance and/or informational purposes only and does not constitute an attempt to collect a debt or to impose personal liability for such obligation. However, a secured party retains rights under its security instrument, including the right to foreclose its lien.

Legal Description**Exhibit "A"****PARCEL NO. 1:**

The South 323.63 feet of the East 273.75 feet of the North 800 feet of the West 816.75 feet of the Southwest quarter of the Southwest quarter of Section Twenty-seven (27), Township Three (3) North, Range Three (3) East of the Gila and Salt River Base and Meridian;

EXCEPT that portion described as follows:

BEGINNING at the Southeast corner of the above described parcel; thence Westerly along the South line of said parcel, 75 feet to a point;

THENCE Northerly to a point which lies 45 feet West and 170 feet North of said Southeast corner, a distance of 170.64 feet;

THENCE Northeasterly 63.63 feet to a point on the East line of said parcel, said point being 215 feet North of said Southeast corner of said parcel;

THENCE South 215 feet to the **PLACE OF BEGINNING**.

Together With:

PARCEL NO. 2

A non-exclusive easement for utilities over the West 8 feet of the North 209.99 feet of Tract "A", **SCENIC HEIGHTS NO. 3**, according to the plat of record in the office of the County Recorder of Maricopa County, Arizona, in Book 84 of Maps, Page 26, said easement to be for the appurtenant use and benefit of the property described in Parcel 1.

Together With:

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PARCEL NO. 3:

That part of the North 800 feet of the West 816.75 feet of the Southwest quarter of the Southwest quarter of Section Twenty-seven (27), Township Three (3) North, Range Three (3) East of the Gila and Salt River Base and Meridian, Maricopa County, Arizona, described as follows:

BEGINNING at the Southeast corner of the above described parcel;

THENCE Westerly along the South line of said Parcel 75 feet to a point;

THENCE Northerly to a point which lies 45 feet West and 170 feet North of said Southeast corner, a distance of 170.64 feet;

THENCE Northeasterly 63.63 feet to a point on the East line of said parcel, said point being 215 feet to a point on the East line of said parcel, said point being 215 feet North of said Southeast corner of said parcel;

THENCE South 215 feet to the **POINT OF BEGINNING**.

Reserving unto the Grantors herein, their Heirs and Assigns, an easement for ingress and egress over the following described portion of Parcel No. 3:

That part of the Southwest quarter of the Southwest quarter of Section Twenty-seven (27), Township Three (3) North, Range Three (3) East of the Gila and Salt River Base and Meridian, Maricopa County, Arizona, described as follows:

BEGINNING at the Southeast corner of the North 800 feet of the West 816.75 feet of said Southwest quarter of the Southwest quarter (being coincident with the Southwest corner of Tract "A", **SCENIC HEIGHTS NUMBER 3**, according to Book 84 of Maps, Page 26);

THENCE West (assumed bearing) parallel with the North line of said Southwest quarter of the Southwest quarter, a distance of 65.50 feet;